

Hasim v. State of U.P.

Allahabad High Court · Division Bench · 24 January 2019 · Writ-C No. 2387 of 2019 · WRIT - C No. - 2387 of 2019 · **Writ disposed; Clause 6.14 representation to be decided; citation in abeyance.**

HEADNOTE

A consumer who cannot pay electricity arrears in a lump sum and seeks instalments must approach the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005. The High Court will not quash the recovery citation on that plea; it will direct the Engineer to consider a representation in accordance with law and keep the citation in abeyance pending that decision.

FACTUAL SUMMARY

Hasim challenged a recovery citation dated 12 December 2018 seeking Rs.2,23,355 as arrears of an electricity bill. In the writ petition he stated that he could not pay the entire amount at once and asked that instalments be fixed. The respondents were the State of Uttar Pradesh and the Executive Engineer, Electricity Distribution Division-IV, Shamli. Counsel for the petitioner, the licensee, and the Standing Counsel were heard. The Division Bench disposed of the writ on 24 January 2019 without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity arrears

HOLDING

Inability to pay electricity arrears in one go is to be addressed by a representation to the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005, not by a writ quashing the recovery citation. The Engineer is to consider and decide the representation in accordance with law; meanwhile the citation remains in abeyance subject to the consumer appearing as directed. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Plea that the consumer cannot discharge the bill in a lump sum is channelled to Clause 6.14 before the Executive Engineer, with the recovery citation stayed only pending that consideration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO INSTALMENTS AND CORRECTNESS OF THE RECOVERY CITATION AND ARREARS

Left to the Executive Engineer under Clause 6.14; the citation was only kept in abeyance pending that decision. ¶ 1